THE JAPANESE CHAMBER OF COMMERCE & INDUSTRY

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THE JAPANESE CHAMBER OF COMMERCE AND INDUSTRY IN VIETNAM
No: 15/2020JCCI
Ref: *Contribute opinions for the Draft Decree detailing a number of articles of the Labor Code on working conditions and labor relations*

SOCIALIST REPUBLIC OF VIETNAM
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Hanoi, 27 Nov, 2020

To: - Government Office
- Legal Department - MOLISA
- Labor Safety Department - MOLISA

First of all, the Japan Chamber of Commerce and Industry in Vietnam (JCCI) would like to send our warm greetings and deep thanks to the cooperation and support of the Government and Agencies in relation to JCCI's activities during the past time.

Currently, **the Draft Decree detailing a number of articles of the Labor Code on working conditions and labor relations** is in the process of being drafted and prepared to be issued. Regarding the provisions at clause 2, Article 64 of the Draft about "continuous shift" to calculate the break time in the working hours specified in Clause 1, Article 109 of the Labor Code as "*a shift with all the following conditions: a) The employee works in a shift from 6 hours or more; b) The transition time between two adjacent work shifts does not exceed 45 minutes.*", we have some following opinions:

1. The calculation of the time to eat, drink and rest of employees into working time is in accordance with principle of "no work, no pay".

2. According to Clause 1, Article 109 of the Labor Code, employees who work from 06 hours a day are entitled to at least 30 consecutive minute mid-shift break time, and they are entitled to at least 45 consecutive minute mid-shift break time at night shift. This is the standard of break time that has been calculated to ensure that employees can eat, drink, rest to regenerate labor power after half of the working shift. Therefore, it's no need to regulate on break time calculating on working time.

3. The 45-minute break between two shifts belongs to two different employees, while the purpose of the continuous shift for calculating the break time into working time is to ensure the labor power of an employee who is forced to work continuously without breaks, thereby avoiding forced labor. Thus, it cannot be based on the transition time between shifts to count as a continuous shift.

With the unreasonable points as we mentioned, JCCI respectfully requests not to regulate Article 64 of the Draft Decree but continue to apply the regulation of 30 consecutive minute mid-shift break time and 45 consecutive minute mid-shift break time at night shift as in Clause 1, Article 109 Labor Code. In the process of implementation, if there is any inadequacies affecting the employees' health because enterprises do not arrange for employees to have mid-time break according to the provisions

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of the current Law, the Ministry of Labor, Invalids and Social Affairs will consult with the Business Community and labor widely and fully to adjust and supplement accordingly.

We sincerely hope the Agencies to consider the above problems and proposals so that the Draft is issued in accordance with the reality, creating motivation for enterprises to produce and develop business. And it would be much appreciated, if we could continue consultations with the Government about these issues to develop business of FDI companies including Japanese companies in Vietnam and strengthen competitiveness of Vietnamese economics.

Finally, JCCI will constantly make effort to become the connection for the socio-economic development of Vietnam as well as Japanese enterprise's development. JCCI will always represent for Japanese enterprises in Vietnam, collect the opinions of enterprise member and offer proposal to contribute more to the development of Vietnam. Therefore, we hope to continuously receive support and support from the Government and agencies.

Thank you very much!

Receiver:

- As above
- Ministry of Investment and Planning – Bureau of Foreign Investment
- Embassy of Japan in Vietnam
- Vietnam Chamber of Commerce and Industry (VCCI)
- JCCH in Ho Chi Minh city
- JCCD in Da Nang
- Save JCCI

On behalf of The Japanese Chamber of Commerce and Industry in Vietnam
Chairman

SUDO KAZUNORI